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Plea vs Trial Decision Worksheet

A structured way to think through the biggest decision in your case.

Whether to accept a plea or go to trial is one of the hardest and most personal decisions a defendant makes. It is legally your decision, not your lawyer's, though their advice is central. This worksheet does not tell you what to choose. It gives you a structured way to weigh it and to ask your lawyer the right questions, so you decide with clear eyes.

This is not legal advice and cannot replace your lawyer's counsel on your specific case. Use it to organize your thinking and your questions.

Understand the offer on the table

What exactly is the plea offer (charges, likely sentence, conditions)?

What is the realistic range if I am convicted at trial?

Questions to ask your lawyer

- ☐ How strong is the government's evidence, honestly?
- ☐ What are the real risks and the realistic best and worst outcomes each way?
- ☐ What rights do I give up by pleading? What does the plea require me to admit?
- ☐ Are there collateral consequences that differ between the plea and a trial conviction?
- ☐ Is there room to negotiate the offer further?

Weigh it for yourself

There are no right answers here. Writing them down honestly is the point.

What matters most to me (certainty, time, principle, family, cost)?

What I can live with, and what I cannot:

My biggest fear about each path:

Things worth remembering

- The decision is legally yours. A good lawyer advises hard but does not decide for you.
- Take the time the court allows. Do not let anyone rush a decision this large.
- Certainty has value, and so does principle. Only you can weigh them for your life.
- Ask your lawyer to put the recommendation and the reasons in plain words you can sit with.

Where I am leaning, and why:

This workbook is educational and reflects lived and professional experience. It is not legal advice and does not create an attorney-client relationship.

Laws and procedures vary by jurisdiction and change over time. For advice about your situation, consult a licensed attorney in your state.

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